

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Michael L. Schuur
Judge of the Superior Court
County of Los Angeles
12720 Norwalk Boulevard
Norwalk, CA 90650

Re: Rodarte Jr., Jose Luis
CDC No.: G46407
Case No.: VA106941-02
Date of Sentence: December 11, 2008

Dear Honorable Michael L. Schuur:

The purpose of this letter is to provide the court with authority to resentence Jose Luis Rodarte Jr. pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rodarte Jr. was sentenced in 2008, and was convicted of section 245, subdivision (A)(2), Assault With Firearm on Person. The trial court sentenced inmate Rodarte Jr. on December 11, 2008. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rodarte Jr.'s section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rodarte Jr.'s sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

46407

OK'D TO GO S/W NOTED JAN 01 2008

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES-SOUTHEAST DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE LUIS RODARTE JR	DOB: 09-30-90	CASE NUMBER VA106941-02
AKA: CII NO.: 027239525 BOOKING NO.: 801127376-1671-633	☐ NOT PRESENT	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT	☐ AMENDED ABSTRACT	
DATE OF HEARING 12-11-08	DEPT. NO. SEN	JUDGE COMMSR. MICHAEL L. SCHUUR
CLERK STAR WILKINSON	REPORTER LORIE E. LILLIENFELD	PROBATION NO. OR PROBATION OFFICER X-2009268 ☒ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE MARNA F. MILLER		COUNSEL FOR DEFENDANT ROBERTO LONGORIA BP ATTY ☐ APPTD.

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
02	PC	245(A)(2)	ASSAULT WITH FIREARM ON PERSON	2007	12-11-08	JURY COURT PLEA	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
02	186.22(B)(1)(C)	10 YEARS	12022.7(A)	3 YEARS			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$ 20 per PC 1465.8.

Restitution Fine(s): \$ 500 per PC 1202.4(b) forthwith per PC 2085.5; \$ 500 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in Item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HIS

8. Other orders (specify): **DEFT ORD TO PAY RESTITUTION OF 2,000.00 TO THE STATE VICTIM RESTITUTION FUND.**
CRT GRANTS DEFENDANTS REQ & RECOMMENDS THAT THE DEFENDANT BE HOUSED LOCALLY.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 17 0

10. ☐ This sentence is to run concurrent with (specify): _____

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

12. DATE SENTENCE PRONOUNCED 12-11-08	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 416	ACTUAL LOCAL TIME 362	LOCKE CONDUCT 4019	TIME SERVED IN STATE INSTITUTION: DMH CDCR CRC
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13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE **M. ROSALES**  DATE **12-15-08**

This form is prescribed under PC 1212.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachment may be used but must be referred to in this document.